

		4 (Improper legal conclusion, no basis, mischaracterizes evidence – Related only to statements regarding McDaniel as noted above; overruled as to Plaintiff.) Overruled as to Nos. 2 (Opp. Ex. B includes copy of estimate sent to McDaniel); 3 and 6 (none of the objections apply); 4 (overruled as to Plaintiff only; objections sustained as to McDaniel); 5 (personal experience, nothing in the objected to item refers to McDaniel’s liability). Plaintiff shall give notice.
308	<i>Thompson vs. Enriching Lives, Inc.</i>	Plaintiff Shane Thompson’s unopposed motion to continue the action on behalf of deceased plaintiff Daniel Thompson is GRANTED. (See Code of Civ. Proc. § 377.31.) Plaintiff Shane Thompson has shown he is decedent’s successor-in-interest within the meaning of Code of Civ. Proc. § 377.11. (See Declaration of Shane Thompson ¶¶ 1-6.) Plaintiff Shane Thompson to give notice.
309	<i>Moshabad vs. Balboa Capital Corporation</i>	Before the court is a Motion to Stay the Case (Motion) pending the outcome of appeal on the underlying arbitration order filed by defendants Balboa Capital Corporation and Ameris Bank (collectively referred to as Defendants). The Motion is GRANTED. The main issue on the motion is whether the Motion is controlled by the Federal Arbitration Act (FAA) or by California state law. The court finds that under the express terms of the arbitration agreement between Defendants and plaintiff Sharona Moshabad (Plaintiff), the FAA applies. (ROA 17; <i>Lamps Plus, Inc. v. Varela</i> (2019) 587 U.S. 176, 183.) As the current appeal pertains to

		the question of the arbitrability of this matter, under the FAA, this action must be stayed pending the outcome of the appeal. (<i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736, 744.) However, even if California state law did apply, the Motion must still be granted. (<i>Smith v. Superior Ct. In & For Los Angeles Cnty.</i> (1962) 202 Cal. App. 2d 128, 131.) Code of Civil Procedure section 1294, subdivision (a), only prohibits automatic stays. The code specifically carves out a stay under Code of Civil Procedure section 916. In such instances, “an appeal from the denial of a motion to compel arbitration automatically stays all further trial court proceedings on the merits.” (<i>Varian Med. Sys., Inc. v. Delfino</i> (2005) 35 Cal. 4th 180, 190.) Therefore under either the FAA or California state law, the Motion must be granted. The court recognizes Plaintiff’s concern spoilation of evidence. The court orders Defendants to preserve all evidence responsive to the written discovery requests Plaintiff previously propounded. This order includes all documents and things which Defendants might otherwise object to producing as objections and producible evidence will be issues for either this court or the arbitrator to decide once the appeal is complete. The matter is stayed pending appeal. The court sets an OSC Re: Status of Appeal for September 21, 2026. Defendants shall give notice.
310	<i>The Learning Light Foundation, Inc. vs. City of Anaheim</i>	Cross-Complainant City of Anaheim’s motion for leave to file the first amended cross-complaint is GRANTED.